

SENATE CHAMBER
STATE OF OKLAHOMA

DISPOSITION

☒ **FLOOR AMENDMENT**

No. _____

☐ **COMMITTEE AMENDMENT**

(Date) _____

I move to amend House Bill No. 2894, by the attached floor substitute (Request #3908) for the title, enacting clause and entire body of the measure.

Submitted by:

Brent Howard
Senator Howard

I hereby grant permission for the floor substitute to be adopted.

[Signature]
Senator Thompson, Chair (required)

[Signature]
Senator Coleman

[Signature]
Senator Fritt
Senator Gillespie

Senator Goodwin

Senator Paxton, President Pro Tempore

[Signature]
Senator Green

[Signature]
Senator Guthrie
Senator Kirt

Senator Woods

Senator Daniels, Majority Floor Leader

Note: Economic Development, Workforce and Tourism committee majority requires five (5) members' signatures.

I hereby grant permission for the floor substitute to be adopted.

[Signature]
Senator Rader
Revenue and Taxation Committee Chair

Howard-QD-FS-HB2894
4/14/2026 10:49 AM

(Floor Amendments Only)

Date and Time Filed: 4-15-26

2:04 pm JS

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 2894

By: Caldwell (Trey) and Townley
of the House

and

Howard of the Senate

FLOOR SUBSTITUTE

An Act relating to the Oklahoma Rural Jobs Act;
amending Section 4, Chapter 354, O.S.L. 2022 (68 O.S.
Supp. 2025, Section 3933), which relates to the cap
on capital investment tax credits; authorizing and
limiting additional participation in program under
certain conditions; clarifying eligibility for
certain certifications; clarifying reference; and
updating statutory language.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 4, Chapter 354, O.S.L.
2022 (68 O.S. Supp. 2025, Section 3933), is amended to read as
follows:

Section 3933. A. The Oklahoma Department of Commerce shall
certify capital investment authority under the provisions of ~~this~~
~~act~~ the Oklahoma Rural Jobs Act in amounts that would not authorize
more than Fifteen Million Dollars (\$15,000,000.00) in state tax
credits to be claimed against state tax liability in any calendar

1 year for applications approved before the effective date of this act
2 and Fifteen Million Dollars (\$15,000,000.00) in state tax credits to
3 be claimed against state tax liability in any calendar year for
4 applications approved on or after the effective date of this act,
5 excluding any credit amounts carried forward as provided under
6 subsection A of ~~Section 5 of this act~~ Section 3934 of this title. A
7 rural fund receiving certification for an application approved prior
8 to the effective date of this act shall be eligible to receive
9 certification on an application submitted after the effective date
10 of this act. Within ninety (90) days of the applicant receiving
11 notice of certification, the rural fund shall issue the capital
12 investment to and receive cash in the amount of the certified amount
13 from a rural investor. At least ten percent (10%) of the rural
14 investor's capital investment shall be composed of capital raised by
15 the rural investor directly or indirectly from sources including
16 directors, members, employees, officers, and affiliates of the rural
17 investor, other than the amount invested by the allocatee claiming
18 the tax credits in exchange for such allocation of tax credits. The
19 rural fund shall provide the Department with evidence of the receipt
20 of the cash investment within ninety-five (95) days of the applicant
21 receiving notice of certification.

22 B. If the rural fund does not receive the cash investment and
23 issue the capital investment within such time period following
24 receipt of the certificate notice, the certification shall lapse and

1 the rural fund shall not issue the capital investment without
2 reapplying to the Department for certification. Lapsed
3 certifications shall revert to the Department and shall be reissued
4 pro rata to applicants whose capital investment allocations were
5 reduced in accordance with the application process provided under
6 subsection D of ~~Section 3 of this act~~ Section 3932 of this title.

7 C. A rural fund, before making a qualified investment, may
8 request from the Department a written opinion as to whether the
9 business in which it proposes to invest is an eligible business.
10 The Department, no later than fifteen (15) business days after the
11 date of receipt of such request, shall notify the rural fund of its
12 determination. If the Department fails to notify the rural fund of
13 its determination by the twentieth business day, the business in
14 which the rural fund proposes to invest shall be deemed an eligible
15 business.

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17 60-2-3908 QD 4/15/2026 2:19:01 PM

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